

****April 10, 2024****

****A New Sanction for Non-Compliance with GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in March 2025, an investigation into the operator Tensa Art Design S.A., holder of the website www.lensa.ro, and found a violation of the provisions of Article 6(1)(a) of Regulation (EU) 2016/679 (GDPR) and Article 12(1)-(4), in relation to Articles 15 and 17 of the same regulation.

As such, the operator was sanctioned as follows:

- a fine of 49,774 lei, equivalent to 10,000 EURO for the violation of Article 6(1)(a) of the GDPR;
- a fine of 24,887 lei, equivalent to 5,000 EURO for the violation of Article 12(1)-(4), in relation to Articles 15 and 17 of the GDPR.

The investigation was initiated following a complaint made to the National Supervisory Authority by a petitioner regarding the fact that the operator Tensa Art Design S.A., holder of the website www.lensa.ro, processed their phone number for direct marketing purposes without their consent, sending them commercial SMS messages through which the petitioner was informed about the company's offers.

During the investigation, it was found that the operator S.C. Tensa Art Design S.A. did not provide evidence of the existence of the petitioner's consent for the processing of their personal data for direct marketing purposes, thus violating the provisions of Article 6(1)(a) of the GDPR.

It was also found that the operator did not properly manage the requests through which the petitioner exercised their rights of access and deletion provided by the GDPR, as the response received was not in accordance with the provisions of Article 12(1)-(4) of Regulation (EU) 2016/679, in relation to Articles 15 and 17 of the same regulation.

Furthermore, under Article 58(2)(c) and (d) of the GDPR, the following corrective measures were ordered for the operator Tensa Art Design S.A.:

- to ensure compliance with the GDPR for personal data processing operations by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the processing of personal data for direct marketing purposes through the transmission of commercial communications via electronic communication services intended for the public (such as phone, SMS, email) is carried out only based on the valid express consent of the data subjects obtained for this purpose;
- to provide a written response to the petitioner's requests in accordance with the provisions of Articles 15 and 17 of the GDPR;
- to ensure compliance with the GDPR for personal data processing operations by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is capable of receiving, analyzing, correctly resolving, and responding to all requests through which data subjects exercise their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****